had made an audit of respondent's books and records. An accountant employed by respondent also testified and offered exhibits in support of his testimony.

The evidence adduced at the hearing establishes that the respondent's basic quota of edible molasses consists of (1) its yearly supply which, under the provisions of War Food Order No. 51, as amended, entitles it to take delivery of 118,800 gallons during a marketing year, and (2) a specific authorization which, by administrative action has been made continuing, entitling the respondent to take delivery of an additional 66,000 gallons per calendar quarter above its yearly supply, or an additional 264,000 gallons per marketing year. The respondent's yearly supply plus the specific authorization establishes a "basic quota" for the respondent of 382,800 gallons per marketing year.

The evidence further establishes that pursuant to applications filed by respondent with the Administration in 1944, 1945 and 1946, respondent was granted special authority to accept deliveries of edible molasses in addition to the basic quota referred to above. Such authority to accept deliveries of edible molasses was granted on a temporary basis and is not a part of respondent's basic quota or yearly supply of edible molasses.

With respect to respondent's over-use of edible molasses, complainant's accountant testified as follows: The respondent during the marketing year ending September 30, 1945, accepted delivery of 1,479,728 gallons. Under its basic quota of 382,800 gallons plus additional authorizations, it was entitled to accept delivery of 1,647,800 gallons, so that for the year ending September 30, 1945, the respondent could have accepted delivery of 168,072 additional gallons of edible molasses under its allotment. For the year ending September 30, 1946, the respondent purchased 2,653,425 gallons whereas under its basic quota plus additional authorizations it was entitled to purchase 1,882,800 gallons. Respondent thereby exceeded its allotment for the period by 770,825 gallons. Giving the respondent credit for the unused portion of its 1945 marketing allotment, amounting to 168,072 gallons, the respondent appeared to have accepted delivery of 602,553 gallons of edible molasses in excess of its allotment during the marketing year 1946.

The respondent, through its accountant, challenged the correctness of the complainant's figure showing that respondent purchased 2,653,425 gallons of edible molasses as stated above. It claimed that it actually purchased 2,555,065 gallons, or 98,360 gallons less than the amount calculated by the complainant. As the evidence shows that there is some question as to the correctness of the higher figure claimed by the complainant, it seems appropriate to resolve the doubt in favor of the respondent. Accordingly, the 602,553 gallons of edible molasses referred to above as the amount by which the respondent exceeded its allotment for the year ending September 30, 1946, is further reduced by 98,360 gallons to a resulting figure of 504,193 gallons.

Upon the basis of the evidence adduced at the hearing, it is hereby found and determined that:

1. The respondent, Allied Molasses Company, Inc., at all times mentioned herein, was engaged in the business of handling edible molasses, at that term is defined in section 1490.5 of War Food Order No. 51, as amended, and was subject to all the provisions of said War Food Order, as amended.

2. The marketing year during which the respondent exceeded its quota, as provided for by § 1490.5 (7) of War Food Order No. 51, as amended, is the twelve-month period beginning October 1, 1945, and ending September 30, 1946.

3. During the marketing year stated in paragraph 2 hereof, the respondent's basic quota of edible molasses was 382,800 gallons; by special administrative authority respondent was granted permission to accept delivery of an additional 1,500,000 gallons of edible molasses, or a total of 1,882,800 gallons.

4. The respondent, during the marketing year stated in paragraph 2 hereof, wilfully violated the provisions of War Food Order No. 51, as amended, by accepting 504,193 gallons of edible molasses, in excess of the total authorization of 1,882,800 gallons stated in paragraph 3 hereof.

§ 1590.15 *Suspension against Allied Molasses Company, Inc.* (a) The respondent, Allied Molasses Co., Inc., 386 Smith Street, Perth Amboy, New Jersey, shall not accept deliveries of edible molasses, as that term is defined in War Food Order No. 51, as amended, until its basic quota of 382,800 gallons, by quarterly accumulations of 95,700 gallons per quarter, shall in the aggregate exceed its over-use of 504,193 gallons.

(b) Any terms used in this order which are defined in War Food Order No. 51, as amended, shall have the meaning therein given to them unless otherwise distinctly expressed or manifestly incompatible with the intent thereof.

(c) Nothing contained in this order shall be deemed to relieve respondent, its agents, successors or assigns, from any restriction, prohibition, or provision contained in War Food Order No. 51, as amended, or as such order may be amended or supplemented.

(d) This order shall become effective five days from the date of service hereof.

(E.O. 9280, 7 F.R. 10179; E.O. 9522, 8 F.R. 3807; E.O. 9334, 8 F.R. 5423; E.O. 9577, 10 F.R. 8087; and War Food Order No. 78, Amendment 2, 10 F.R. 13041; 11 F.R. 5105)

Issued this 16th day of August 1946.

[SEAL] C. C. FARRINGTON,
Acting Administrator,
Production and Marketing Administration.

[F. R. Doc. 46-14934; Filed, Aug. 23, 1946; 4:20 p. m.]

TITLE 14—CIVIL AVIATION

Chapter I—Civil Aeronautics Board

[Regs. Serial No. 373]

PART 04—AIRPLANE AIRWORTHINESS

ISSUANCE OF TEMPORARY AIRWORTHINESS CERTIFICATES FOR FERRYING CERTAIN SURPLUS MILITARY AIRCRAFT TO THE UNITED STATES

At a session of the Civil Aeronautics Board held at its office in Washington, D. C., on the 23d day of August 1946. It appearing that:

(1) Certain surplus aircraft of the armed forces now based in foreign countries will be sold in those countries to citizens of the United States and that it will be necessary for such aircraft to be flown to the United States in order to be modified so as to meet the airworthiness standards prescribed for civil aircraft by the Civil Air Regulations;

(2) The Administrator is establishing offices in many foreign countries which can properly control the issuance of temporary airworthiness certificates for such aircraft;

(3) The Administrator will designate appropriately qualified personnel to inspect any aircraft for which a temporary airworthiness certificate is issued to insure that it is in a good state of preservation and safe for the ferrying flight authorized.

Now therefore: The Civil Aeronautics Board makes and promulgates the following Special Civil Air Regulation to become effective August 23, 1946.

The Administrator is authorized to issue temporary airworthiness certificates valid only for ferry flights by civil aircraft of the United States from the location at which the certificate is issued to a point at which modification may be made if the aircraft meets the following requirements:

(a) The aircraft is of a basic model which is essentially the same as a civil aircraft for which an approved type certificate has been issued by the Administrator;

(b) The aircraft was manufactured for the military services of the United States and upon reasonable modification can fully comply with the airworthiness requirements of the Civil Air Regulations; and

(c) Upon inspection and examination by duly qualified personnel designated by the Administrator there appear to be no unairworthy characteristics which would prevent a safe ferrying operation.

In issuing such certificates the Administrator shall include such terms, conditions and limitations as to crew members, equipment, operating conditions and limitations as are necessary to assure safe operation of the aircraft for this special purpose.

This special regulation shall terminate September 1, 1947, and no certificate issued hereunder shall be valid after October 1, 1947.

(52 Stat. 984, 1007; 49 U.S.C. 425, 551)